



EAGLE MOUNTAIN PLANNING COMMISSION MEETING MINUTES

January 24, 2023, 5:30 p.m.
Eagle Mountain City Council Chambers
1650 East Stagecoach Run, Eagle Mountain, Utah 84005

COMMISSION MEMBERS PRESENT: Jason Allen, Jeremy Bergener, Matthew Everett, Christopher Pengra, Commissioner Brent Strong, and Alternate Commissioner Robert Fox.

CITY STAFF PRESENT: Steve Mumford, Assistant City Administrator/Community Development Director; Marcus Draper, City Attorney; Todd Black, Wildlife Biologist/Environmental Planner; Robert Hobbs, Planning Manager; and David Stroud, Senior Planner.

CITY STAFF PRESENT ELECTRONICALLY: Elizabeth Fewkes, Recording Secretary.

5:30 P.M. – Eagle Mountain City Planning Commission Work Session

Commissioner Everett called the meeting to order at 5:34 p.m.

1. Discussion Items

Assistant City Administrator/Community Development Director Steve Mumford explained that an item regarding signage on business vehicles was publicly noticed for this agenda but will now be on the following meeting's agenda.

1.A. WORK SESSION ITEM – DISCUSSION: FUTURE CODE AMENDMENTS

Planning Manager Robert Hobbs introduced the item and presented a list of prospective Municipal Code amendments identified by staff or requested by the Mayor, City Council, Planning Commission, or the City Attorney. He requested feedback identifying the amendments the Commission would like to prioritize.

Discussion ensued regarding the following:

- Providing an alternate method of development other than master development agreements for projects exceeding 50 acres to conform with changes to State Code in 2021;
- The status and desirability of further amendments to the Community District Nodes Overlay and possible adjustments for the overlay to be able to be used in conjunction with the Affordable Housing Plan strategies;
- Exploring application activity;
- Considering a wildfire overlay zone;
- The potential need to appoint a Board of Adjustments to review administrative variance requests as the City grows;
- Requests to prioritize amendments for the following:
 - Bringing Municipal Code into compliance with State Code,

- Adopting the Moderate-Income Housing strategies,
- Overlay zones,
- Expiration of applications after inactivity,
- Public hearing table,
- Landscaping timing,
- Caretaker units,
- Setback footnotes,
- Multifamily zones height standards,
- Accessory dwelling unit standards,
- Living on a trailer shall be prohibited, and
- No accessory structure before primary structure.

Mr. Mumford identified Municipal Code amendments that will require significant time and revision including:

- The Wildlife Corridor Overlay Zone,
- Commercial and multifamily architectural standards,
- Hillside development,
- Planned Community Zone,
- Wash Protection Overlay Zone (which might be combined with the Wildlife Corridor Overlay Zone),
- Community District Nodes Overlay,
- Transfer of development rights, and
- Industrial Zone.

Mr. Hobbs said that staff is currently working on amendments for right-of-way vacations, service drive widths for emergency services access to rear-loaded units, ADA standard compliance, and transfer of development rights.

Commissioner Everett adjourned the work session at 6:20 p.m.

6:30 P.M. – Eagle Mountain City Planning Commission Policy Session

Commissioner Everett called the policy session to order at 6:34 p.m.

2. Pledge of Allegiance

Commissioner Everett led the Pledge of Allegiance.

3. Declaration of Conflicts of Interest

None.

4. Approval of Meeting Minutes

4.A. December 13, 2022 Planning Commission Minutes

4.B. January 10, 2023 Planning Commission Minutes

MOTION: *Commissioner Pengra moved to approve the December 13, 2002 and January 10, 2023 minutes. Commissioner Allen seconded the motion.*

Commissioner Everett informed staff that Councilmember Brett Wright had been in attendance during the January 10, 2023 meeting.

AMENDED MOTION: *Commissioner Pengra moved to approve the December 13, 2002 and January 10, 2023 minutes as amended. Commissioner Allen seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>
☒ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>
☒ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>
☒ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>
☒ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>

The motion passed with a unanimous vote.

5. Status Report

Staff reviewed the planning items discussed and voted upon during the January 17, 2023 City Council meeting.

6. Action and Advisory Items

6.A. ACTION ITEM – PUBLIC HEARING: FIREFLY MASTER DEVELOPMENT
(tabled from Jan. 10th)

Mr. Hobbs explained that the applicant representatives are available to answer questions.

Applicant representative Nathan Shipp said they brought their full team to answer any questions and requested to move forward hopefully with a positive recommendation.

Discussion clarified the location of Firefly Drive and the intersections determined to have a failing level of service in the Firefly Traffic Impact Study.

Mr. Hobbs cited a portion of a letter from City Engineer Chris Trusty, “I believe that with failing conditions, drivers would be more likely to travel west to Firefly Drive and then to the intersection of Pole Canyon Blvd. and that these particular intersections would perform above failing conditions,” and explained that Mr. Trusty indicated that he is comfortable with the recommendations included in the Hales Engineering Pole Canyon intersection Configurations

memorandum and with the conclusions and recommendations made in the previously submitted Pole Canyon/Firefly Traffic Impact Study.

Applicant representative Chase Andrizzi with DAI clarified that the intersections in question are located within the boundaries of Cedar Fort, not Eagle Mountain.

Applicant representatives explained that Exhibit L – Data Center Overlay Zone addresses the specific conditions and design standards for that type of use within the project and the standards are geared specifically toward a potential purchaser.

Commissioner Bergener expressed concern with the request for exceptions to setbacks, frontages, and roadway width standards. He advocated for any exceptions granted in the agreement to be clearly defined and limited.

Discussion ensued regarding the staff-recommended condition that the requested Master Development Plan (MDP) amendments and Master Development Agreement (MDA) amendments be contingent upon compliance with the plan and/or agreement revisions as deemed warranted by the City Council and any revisions required to the proposed development agreement by the City Attorney.

City Attorney Marcus Draper stated that the City is still undergoing negotiations with DAI.

The Commission discussed concerns about the requested setbacks, frontages, and road widths that are narrower than current City standards.

Commissioner Allen stated that he had spoken with the City Attorney regarding Exhibit C: The Community Plan page 61 Exceptions to City's Vested Laws.

City Attorney Marcus Draper explained that one of the items still undergoing negotiations with the applicants is the inclusion of a provision that the proposed development agreement would control in the event of a conflict with Municipal Code.

Commissioner Allen stated that he is not amenable to setback reductions nor Exhibit E allowing for an expedited review.

Commissioner Everett said he likes the project and the open space; however, he has hesitations about the expedited review process and the decreased frontages, side setbacks, and street widths. He is in favor of Municipal Code dictating the terms rather than the agreement.

Commissioner Bergener said his greatest concern is to ensure the language in the agreement identifies and limits exemptions and to have an approval process that prevents ambiguities in the approval that could result in undesirable outcomes. He prefers the look and feel of this project to the original proposal. His other concerns with the project are at the discretion of and will be addressed by the legislative authority.

Commissioner Pengra acknowledged the time, effort, and cost invested in the project without the promise of an outcome. He applauds the developers' efforts and the resulting plan. Nevertheless, he would never advise the City to allow the agreement to govern in the case of a conflict. He thinks that data center users have realized that due to serious drought conditions cooling with water is not the best practice environmentally; however, they may still desire the option as it is the most economical. As such, he desires approvals to undergo the full review process.

MOTION: *Commissioner Pengra moved to recommend approval to the City Council of the Firefly Master Development Plan and Master Development Agreement striking Exhibit E which allows for expedited approvals and that Municipal Code shall override in the case of a dispute. Commissioner Everett seconded the motion.*

Commissioner Everett requested for Commissioner Pengra to amend the motion to include conditions requiring current standards for side and front setbacks, current road widths, and frontage widths to be applied to this application and for any revisions deemed worthy by the City Attorney to be included with this recommendation to the City Council.

Commissioner Pengra declined the addition as the City Attorney can include his recommendations with the item without it being a condition of approval and because he does not want to include items he has not reviewed.

After discussion explored the benefits and safety, parking, and economic impacts of requiring the project to meet current Municipal Code standards for setbacks, frontages, and road widths, Commissioner Pengra declined to add a condition to the motion stipulating adherence to those standards as he feels the proposed project is preferable to the original plan and requiring adherence to those standards would increase the price of the units in a challenging housing market.

Commissioner Allen asked for the inclusion of a condition recommending that Exhibit E allowing for the expedited approvals be stricken from the agreement.

The Commission reviewed and discussed concerns with Exhibit E and the proposed approval bodies.

Mr. Mumford explained that staff's primary concern with Exhibit E is addressed with Footnote 1, "If immediately adjacent to an individually Platted Residential Dwelling unit that has been sold to resident (and not separated by a road or other open space) then Planning Commission review and approval is required."

Commissioner Pengra stated that he is willing to amend his motion to remove Exhibit E to prevent burdening staff with the responsibility for decisions with potential political impacts.

AMENDED MOTION: *Commissioner Pengra moved to recommend approval to the City Council of the Firefly Master Development Plan and Master Development Agreement with the following conditions:*

1. *Exhibit E shall be stricken from the agreement and the approval process shall follow Municipal Code; and*
2. *Municipal Code shall govern in the case of a dispute between Municipal Code and the master development agreement.*

Commissioner Everett seconded the motion.

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☐ <i>Jason Allen</i>	☒ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>
☒ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>
☐ <i>Matthew Everett</i>	☒ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>
☒ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>
☐ <i>Brent Strong</i>	☒ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>

The motion failed with a vote of 2 to 3.

Commissioners Allen and Strong clarified that their dissention was due to the desire for the setbacks, frontages, and road widths to meet Municipal Code.

MOTION: *Commissioner Bergener moved to recommend approval to the City Council of the Firefly Master Development Agreement with the following conditions:*

1. *The setbacks, frontages, and road widths shall conform with Municipal Code;*
2. *Exhibit E allowing for an expedited review process shall be stricken from the agreement; and*
3. *Municipal Code shall govern in the case of a dispute between Municipal Code and the master development agreement.*

Commissioner Allen seconded the motion.

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>
☒ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>
☒ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>
☒ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>
☒ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>

The motion passed with a unanimous vote.

6.B. ACTION ITEM – PUBLIC HEARING: VARIOUS CODE AMENDMENTS TO TITLE 17

Senior Planner David Stroud presented the item and explained that Municipal Code currently has two code sections that specify the required separation distance of streetlights – EMMC 15.10.390 and EMMC 15.70.090. However, these two sections conflict. The proposed changes eliminate the discrepancy and require streetlights to be 250 to 350 apart along rural and local streets. On collector

and arterial streets, the distance is 150 to 250 feet of separation. The amendment removes the discrepancy in another section that states all development will have street light separation of 300-600 feet. Plan reviews have been based on the 150-to-250-foot and 250-to-350-foot separation standards, not the 300-to-600-foot separation. In cases of conflict, the more restrictive standards have been applied, and existing and approved developments will retain their current spacing standards.

Mr. Mumford noted that the City Council has the authority to grant exemptions for developments in rural residential zones for streetlight, curb and gutter, and sidewalk standards.

Mr. Stroud explained that EMMC 17.25.040 permits accessory structures in residential zones. Standards in place are limited to setbacks, height, and a size equal to a percentage of the dwelling footprint in certain zones. If over 200 square feet, building code will apply. A more accurate standard may be a percentage of the lot's square footage. The current standard is somewhat penalizing on a larger lot with a smaller footprint home. The area is present to have a large accessory building but if the home is not large, the accessory building is limited, even though the lot can support a larger structure. The proposed change would limit the percentage of lot coverage of an accessory building(s) to 10 percent or 15 percent, depending on the zone.

Commissioner Bergener noted that setback requirements will additionally limit the size of structure permitted which in turn alleviates some of his apprehensions with disproportionately large structures.

Mr. Stroud explained that State Code 10-9a-534 preempts municipalities from architectural standards of single-family and two-family structures per HB 98-2021 unless contained in a development agreement. Single-family changes to Municipal Code have been approved but two-family structure amendments are needed. The proposed changes bring EMMC 17.25.040 and EMMC 17.72.040 into conformance with State Code. Commercial multifamily development standards are contained in different sections of Municipal Code that will be addressed at a future date.

Commissioner Everett opened the public hearing at 7:55 p.m.

Rob Carlson requested clarification regarding the size of buildings permitted on a lot as he had an accessory dwelling unit application denied as the structure exceeded 50% of the primary dwelling unit.

Commissioner Everett closed the public hearing at 7:56 p.m.

In response to Mr. Carlson, Mr. Draper cited EMMC 17.70.030(D)(3)(b), "Size. The living space of a detached accessory dwelling unit must be a minimum of 400 square feet and may not be larger than 50 percent of the primary home's footprint (including garage), up to a maximum of 1,200 square feet. Detached accessory dwelling units may not have more than two bedrooms and must be permanently connected to utilities, attached to a site-built permanent foundation which complies with building code, and must comply with all other applicable standards of this chapter. A building

permit and inspections are required for construction of the foundation and installation of the structure and connection to utilities.”

Commissioner Everett verified with staff that EMMC 17.70.030(D)(3)(b) is excluded from this amendment but is worthy of consideration. Mr. Stroud said that section of Municipal Code can be brought forward for review at a future meeting.

Discussion considered the suitability of the proposed 15% of lot coverage of an accessory building in relation to the size of the lot and whether the 1,200 square foot maximum or 50 percent of the primary home’s footprint for accessory dwelling units in Section 17.70.030(D)(3)(b) should be reviewed and amended at a future meeting with consideration of utility system impacts.

Mr. Stroud confirmed that the square footage is cumulative for all accessory structures and the amendment does not propose to limit the number of structures. Building permits are not required for structures under 200 square feet but their square footage would count towards the total for accessory buildings.

Commissioner Everett suggested amending the language in EMMC 17.25.050(F) from “Variations in exterior materials (fiber cement siding, board and batten or vertical siding, stone, brick, stucco) and/or colors are preferred,” to “Variations in exterior materials (fiber cement siding, board and batten or vertical siding, stone, brick, stucco) and/or colors are *recommended*.”

Discussion considered amending the verbiage in 17.25.050(F) as suggested by Commissioner Everett and the discouragement of aluminum siding as potentially unnecessary as it is no longer a commonly used material.

MOTION: *Commissioner Pengra moved to recommend approval to the City Council of the amendments to Eagle Mountain Municipal Code as follows:*

- 1. Section 15.10.390 Street Lighting shall be amended as shown;*
 - 2. Section 17.25.040 Residential Development Standards shall be amended as presented;*
 - 3. The sixth line in Section 17.25.050 Generally Applicable Provisions shall be amended to read, “Variations in exterior materials (fiber cement siding, board and batten or vertical siding, stone, brick, stucco) and/or colors are recommended;” and*
 - 4. Section 17.72.040 shall be amended as presented.*
- Commissioner Bergener seconded the motion.*

Commissioner Bergener noted that Section 17.25.040 needed to be added to the motion.

AMENDED MOTION: *Commissioner Pengra moved to recommend approval to the City Council of the amendments to Eagle Mountain Municipal Code as follows:*

- 1. Section 15.10.390 Street Lighting shall be amended and reflect the corrections made by staff during the meeting to require streetlights to be local streets and 150 to 250 feet of separation on collector and arterial streets and 250 to 350 apart along rural and local streets;*

2. *Section 15.70.090 Underground Distribution for New Subdivisions shall be amended as presented;*
 3. *Section 17.25.040 Residential Development Standards shall be amended as presented;*
 4. *The sixth line in Section 17.25.050 Generally Applicable Provisions shall be amended to read, “Variations in exterior materials (fiber cement siding, board and batten or vertical siding, stone, brick, stucco) and/or colors are recommended;” and*
 5. *Section 17.72.040 shall be amended as presented.*
- Commissioner Bergener seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>
☒ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>
☒ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>
☒ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>
☒ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>

The motion passed with a unanimous vote.

7. [Discussion Items](#)

8. [Next scheduled meeting](#)

The next Planning Commission meeting is scheduled for February 14, 2023.

9. [Adjournment](#)

MOTION: *Commissioner Strong moved to adjourn the meeting at 8:28 p.m. Commissioner Everett seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>
☒ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>
☒ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>
☒ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>
☒ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>

The motion passed with a unanimous vote.

The meeting was adjourned at 8:28 p.m.

Approved by the Planning Commission on February 28, 2023.


Steve Mumford (709.1.2023 08:06 MST)

Steve Mumford, AICP
Assistant City Administrator/Community Development Director

01.24.23 PC Approved Minutes

Final Audit Report

2023-03-01

Created:	2023-03-01
By:	Shawna Ellis (sellis@emcity.org)
Status:	Signed
Transaction ID:	CBJCHBCAABAAxAVUlzd55cjBh41lopC2IMiCMbpi_c5G

"01.24.23 PC Approved Minutes" History

-  Document created by Shawna Ellis (sellis@emcity.org)
2023-03-01 - 2:20:12 PM GMT- IP address: 104.37.251.18
-  Document emailed to Steve Mumford (smumford@emcity.org) for signature
2023-03-01 - 2:20:37 PM GMT
-  Email viewed by Steve Mumford (smumford@emcity.org)
2023-03-01 - 3:06:24 PM GMT- IP address: 67.186.230.37
-  Document e-signed by Steve Mumford (smumford@emcity.org)
Signature Date: 2023-03-01 - 3:06:35 PM GMT - Time Source: server- IP address: 67.186.230.37
-  Agreement completed.
2023-03-01 - 3:06:35 PM GMT